

104. Extent of liability in respect of goods carried in open wagon –

Where any goods, which, under ordinary circumstances, would be carried in covered wagon and would be liable to damage, if carried otherwise, are with the consent of the consignor, recorded in the forwarding note, carried in open wagon, the responsibility of railway administration for destruction, damage or deterioration which may arise only by reason of the goods being so carried, shall be one-half of the amount of liability for such destruction, damage or deterioration determined under this chapter.

Comments

Doctrine of promissory estoppel, cannot be applied in teeth of an obligation or liability imposed by law. – The doctrine of promissory estoppel cannot be invoked for preventing the Government from acting in discharge of its duty under the law. The doctrine of promissory estoppel cannot be applied in teeth of an obligation or liability imposed by law.

Doctrine of estoppel, applies when there is clear and unequivocal promise. – The doctrine of promissory estoppel applies when, inter alia, there is a clear and unequivocal promise relying on which the other act was to his prejudice.

105. Right of railway administration to check contents of certain consignment or luggage – Where the value has been declared under sec. 103 in respect of any consignment a railway administration may make it a condition of carrying such consignment that a railway servant authorized by it in this behalf has been satisfied by examination or otherwise that the consignment tendered for carriage contain the articles declared.

Comments

Section 105 provides for examination by railway administration of goods/consignment of which value has been declared.

106. Re-weighment of goods when obligatory. – It is true that Railway Administration is not always bound to reweigh the goods. But when the railway administration had decided to impose penalty such re-weighment is obligatory. Therefore, the railway authority is bound to re-weigh the goods when asked for.

A person shall not be entitled to claim compensation against railway administration for the loss, destruction, damage, deterioration or non-delivery of goods carried by railway, unless a notice thereof is served by him or on his behalf, -

- (a) to the railway administration to which the goods are entrusted for carriage; or